



CHAPTER xiii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Bradford Coventry Isle of Thanet Joint Hospital Board Stafford Swansea and Whitstable. A.D. 1924.

[14th July 1924.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 : 38 & 39 Vict. c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 1) Act 1924. Short title.

A.D. 1924.

SCHEDULE.

CITY OF BRADFORD.

*Bradford
Order.*

*Provisional Order for altering the Bradford Corporation
Act 1866.*

WHEREAS the City of Bradford (hereinafter referred to as "the City") is an urban sanitary district of which the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas there are in force in the City the unrepealed provisions of the Bradford Corporation Act 1866 (hereinafter referred to as "the Act of 1866") as altered by certain Local Acts and Provisional Orders confirmed by Parliament which Local Acts and Provisional Orders do not affect the subject matter of this Order;

And whereas by Section 49 of the Act of 1866 and Schedule (E.) to that Act provision is made as to the tolls which the Corporation may demand and take in respect of the user of their slaughter-houses;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1866 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1866 shall be altered and amended in manner following namely:—

Alteration of
tolls in respect
of slaughter-
houses.

1. Schedule (E.) to the Act of 1866 shall be repealed and the Act of 1866 shall have effect as if the Schedule to this Order were substituted for that Schedule.

2. The Corporation shall have power with the sanction of the Minister of Health to alter from time to time the tolls authorised by this Order or any of them and from and after the date upon which such altered tolls as sanctioned by the Minister come into operation they shall be deemed to be substituted for the corresponding tolls in the Schedule to this Order.

Short title.

3. This Order may be cited as the Bradford Order 1924.

A.D. 1924.

*Bradford
Order.*

Tolls in respect of the slaughtering of animals upon the premises including use of Hide and Skin Market supply of gas hot and cold water lairage for one day (but not for a night) hanging services and accessories :—

								<i>s.</i>	<i>d.</i>
For every bull ox bullock cow or heifer	-	-						3	0
For every calf	-	-	-	-	-	-	-	1	0
For every sheep or lamb	-	-	-	-	-	-	-	0	6
For every hog or pig	-	-	-	-	-	-	-	1	4
For every other beast	-	-	-	-	-	-	-	2	0

Given under the Official Seal of the Minister of Health
this Eighth day of February One thousand nine hundred
and twenty-four.

F. L. TURNER

Assistant Secretary Ministry of Health.

CITY OF COVENTRY.

Provisional Order for altering the Coventry Corporation Act 1920.

*Coventry
Order.*

WHEREAS the City of Coventry (hereinafter referred to as "the City") is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and there are in force in the City the unrepealed provisions of the Coventry Corporation Act 1920 (hereinafter referred to as "the Act of 1920"):

And whereas by Part XIII. of the Act of 1920 provision was made for the consolidation of rates in the City;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1920 in manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby

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Provisional Orders Confirmation (No. 1) Act, 1924.

A.D. 1924.

*Coventry
Order.*

Discount for
prompt pay-
ment of
rates.

orders that from and after the date of the Act of Parliament confirming this Order the Act of 1920 shall be altered or amended in the manner following (that is to say) :—

1.—(1) The Corporation may if they think fit direct the Overseers of the Poor to allow a deduction by way of discount not exceeding five per centum in any case from the amount payable in respect of any rate (including the poor rate) or any instalment thereof by any person who shall pay the same within such period after the receipt by him of the demand note in respect of the rate or after the date on which the instalment shall fall due as the Corporation may prescribe and in every case the Overseers shall make such deduction accordingly :

Provided that such deduction shall in respect of each rate be in every case an equivalent amount in like circumstances.

(2) A printed notice stating the amount of the discount for the time being allowable and the period prescribed for the purposes of this Article shall form part of or be affixed to each demand note issued for any rate in respect of which subdivision (1) of this Article applies.

Short title.

2. This Order may be cited as the Coventry Order 1924.

Given under the Official Seal of the Minister of Health this
Eighteenth day of February One thousand nine hundred
and twenty-four.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

ISLE OF THANET JOINT HOSPITAL
DISTRICT.

*Isle of Thanet
Order.*

Provisional Order for altering certain Provisional Orders.

WHEREAS by virtue of the Isle of Thanet Joint Hospital Orders 1893 to 1923 being Provisional Orders duly confirmed by Parliament the Boroughs of Margate and Ramsgate the Urban District of Broadstairs and Saint Peter's and the Rural District of the Isle of Thanet constitute a United District called the Isle of Thanet Joint Hospital District of which the governing body is the Isle of Thanet Joint Hospital Board (hereinafter referred to as "the Joint Board");

And whereas the Joint Board consists of four ex-officio members and seventeen elective members representing the

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Provisional Orders Confirmation (No. 1) Act, 1924.

Councils of the Boroughs Urban District and Rural District
aforesaid; A.D. 1924.

And whereas it is expedient that two additional members
be elected to represent the Council of the Borough of Margate : *Isle of Thanet
Order.*

Now therefore the Minister of Health in pursuance of the
powers given to him by Section 297 of the Public Health Act
1875 and of any other power in that behalf hereby orders that
from and after the date of the Act of Parliament confirming this
Order the said Provisional Orders shall be altered in manner
following that is to say :—

1. The number of elective members on the Joint Board Increase in
shall be increased from seventeen to nineteen the two additional number of
members being elected by the Mayor Aldermen and Burgesses elective
of the Borough of Margate acting by the Council. members.

2. The provisions of Article IX. of the Isle of Thanet Joint First election
Hospital Order 1893 as amended by the Isle of Thanet Joint of additional
Hospital Order 1896 shall apply to the first election of the elective
additional members to be elected in pursuance of this Order as if members.
the election related to the filling of vacancies occurring on the
date of the Act of Parliament confirming this Order.

3. This Order may be cited as the Isle of Thanet Joint Short titles.
Hospital Order 1924 and the Isle of Thanet Joint Hospital Orders
1893 to 1923 and this Order may be cited together as the Isle
of Thanet Joint Hospital Orders 1893 to 1924.

Given under the Official Seal of the Minister of Health
this Fifth day of February One thousand nine hundred
and twenty-four.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

BOROUGH OF STAFFORD.

*Provisional Order for altering the Stafford Corporation
Act 1876 the Stafford Corporation Act 1880 and a
Confirming Act.*

*Stafford
Order.*

WHEREAS the Borough of Stafford (hereinafter referred to as
“the Borough”) is an urban district of which the Mayor
Aldermen and Burgesses acting by the Council (hereinafter
referred to as “the Corporation”) are the local authority for
the purposes of the Public Health Act 1875;

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Provisional Orders Confirmation (No. 1) Act, 1924.

A.D. 1924.

—
Stafford
Order.

And whereas there are in force in the Borough the unrepealed provisions of the Stafford Corporation Acts 1876 and 1880 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed and which Acts are hereinafter together referred to as "the Local Acts") as altered by certain Provisional Orders confirmed by Parliament including the Stafford Order 1914 (hereinafter referred to as "the Order of 1914") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1914;

And whereas by Section 24 of the Act of 1876 as altered by Section 57 of the Act of 1880 and by Article I. of the Order of 1914 the limits (hereinafter referred to as "the water limits of the Corporation") within which the Corporation may supply water are defined;

And whereas by the Local Acts as altered by subsequent Provisional Orders confirmed by Parliament including the Order of 1914 the Corporation were empowered with the sanction of the Local Government Board to borrow for waterworks purposes moneys not exceeding in the whole the sum of sixty-two thousand pounds;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Acts and the Order of 1914 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts as altered as aforesaid and the Order of 1914 shall be altered so that the following provisions shall take effect that is to say:—

Extension of
water limits
of Corpora-
tion.

1. The water limits of the Corporation shall be extended so as to include the Parishes of Acton and Bednall Brocton Coppenhall Cresswell and Dunston in the County of Stafford and the provisions of the Local Acts as altered as aforesaid with respect to the supply of water and otherwise with respect to water purposes which now apply and have effect within the existing water limits of the Corporation shall with the necessary modifications apply and have effect within the water limits of the Corporation as extended by this Order.

Additional
borrowing
powers for
waterworks
purposes.
Protection
for County
Council.

2. Article III. of the Order of 1914 shall have effect as if the words "ninety-two thousand pounds" were substituted therein for the words "sixty-two thousand pounds."

3. Article V. (Protection for County Council) of the Order of 1914 shall have effect as if the added area therein referred to included the area added to the water limits of the Corporation by this Order.

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xiii.]
Provisional Orders Confirmation (No. 1) Act, 1924.

4.—(1) If at any time after the expiration of five years from the commencement of this Order the Corporation are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of the Local Acts throughout the district of the Cannock Rural District Council within the limits of supply the said Rural District Council may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or a Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Corporation as if in either case this Order had not been made.

A.D. 1924.
—
Stafford
Order.
Protection
for Cannock
Rural Dis-
trict Council.

(2) If any difference shall arise between the Corporation and the said Rural District Council or between the Corporation and any company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health.

5. This Order may be cited as the Stafford Order 1924.

Short title.

Given under the Official Seal of the Minister of Health
this Twenty-fifth day of January One thousand nine
hundred and twenty-four.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

BOROUGH OF SWANSEA.

Provisional Order for altering the Swansea Corporation
Act 1920 and the Swansea Corporation Act 1922.

Swansea
Order.

WHEREAS the Borough of Swansea (hereinafter referred to as "the Borough") is an urban sanitary district of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Swansea Corporation Act 1920 and the Swansea Corporation Act 1922 (hereinafter respectively referred to as "the Act of 1920" and "the Act of 1922");

And whereas by Part VI. of the Act of 1920 provision was made for the consolidation of rates in the Borough;

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Provisional Orders Confirmation (No. 1) Act, 1924.

A.D. 1924. : And whereas by Sections 31 and 33 of the Act of 1922
 --- provision is made for and in connection with the granting of
Swansea loans by the Corporation to the Council of the Swansea University
Order. College;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1920 and the Act of 1922 in manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1920 and the Act of 1922 shall be altered or amended in the manner following that is to say :—

Discount for
prompt
payment of
consolidated
rate.

1.—(1) The Corporation may if they think fit direct the Overseers to allow a deduction by way of discount not exceeding five per centum in any case from the amount payable in respect of any consolidated rate or any instalment thereof by any person who shall pay the same within such period after the date on which the rate is made or after the receipt by him of the demand note in respect of the rate or after the date on which the instalment shall fall due as the case may be as the Corporation may prescribe and in every case the Overseers shall make such deduction accordingly :

Provided that such deduction shall in respect of each half-yearly rate be in every case an equivalent amount in like circumstances.

(2) A printed notice stating the amount of the discount for the time being allowable and the period prescribed for the purposes of this Article shall form part of or be affixed to each demand note issued for any consolidated rate in respect of which sub-division (1) of this Article applies.

(3) Any owner who shall be entitled to a deduction under subsection (1) of Section 53 of the Act of 1920 shall also be entitled to a further deduction in respect of any consolidated rate to which sub-division (1) of this Article applies at the rate of discount for the time being applicable to such rate calculated on the amount due after the deduction under the said Section 53 has been made if the amount due shall be paid within the period prescribed by sub-division (1) of this Article.

Gift to
University
College.

2.—(1) The Corporation may grant to the Council of the Swansea University College a sum not exceeding fifty thousand pounds upon such terms and conditions as may be agreed between the said Council and the Corporation in discharge of any obligations to the said College under their Charter of Incorporation or otherwise.

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xiii.]
Provisional Orders Confirmation (No. 1) Act, 1924.

(2) The said grant shall be effected by the cancellation of the whole or a part of the loan of fifty thousand pounds made by the Corporation to the said Council under Section 33 of the Act of 1922 and the release of the said Council from all obligations and liabilities in respect of the repayment thereof or the interest thereon.

A.D. 1924.

—
Swansea
Order.

(3) The aggregate of the sum or sums which the Corporation may from time to time lend to the said Council under the said Section 33 shall be reduced by the amount of the loan cancelled by the Corporation in pursuance of this Article.

3. This Order may be cited as the Swansea Order 1924.

Short title.

Given under the Official Seal of the Minister of Health
this Twentieth day of February One thousand nine
hundred and twenty-four.

(L.S.)

H. W. S. FRANCIS

Assistant Secretary Ministry of Health.

URBAN DISTRICT OF WHITSTABLE.

*Provisional Order for altering the Whitstable Water and
Improvement Act 1902 and a Confirming Act.*

Whitstable
Order.

WHEREAS the Urban District Council of Whitstable (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Whitstable (hereinafter referred to as "the District") and the provisions of the Whitstable Water and Improvement Act 1902 (hereinafter referred to as "the Local Act") as altered by the Whitstable Order 1922 (hereinafter referred to as "the Order") which was confirmed by the Ministry of Health Provisional Orders Confirmation (No. 9) Act 1922 (hereinafter referred to as "the Confirming Act") are in force in the District;

And whereas in pursuance of Section 6 of the Local Act as extended by Article 1 of the Order the Council have purchased the water undertaking of the Whitstable Water Company Limited and by the Local Act as altered by the Order the Council are authorised to carry on a water undertaking (hereinafter referred to as "the water undertaking") and supply water within the District;

And whereas by Section 146 of the Local Act provision was made with respect to the application of the revenue of the water undertaking and by Sections 148 and 149 provision was

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Provisional Orders Confirmation (No. 1) Act, 1924.

A.D. 1924. made (amongst other things) with respect to deficiencies in the
 — revenues of the Council on account of the water undertaking
Whitstable and the keeping of separate accounts for the water undertaking;
Order.

And whereas by Sections 76 and 78 of the Local Act the Council are authorised (inter alia) to pay or contribute towards the payment of a public band of music for the District and to provide and charge for the use of chairs in public places;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to partially repeal alter or amend the Local Act and the Order and the Confirming Act so far as it relates thereto in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of any other power in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act and the Order and the Confirming Act so far as it relates thereto shall be partially repealed altered or amended so that the following provisions shall take effect namely :—

Extension
of limits
of supply.

1. The limits within which the Council shall supply water shall be extended so as to include in addition to the District the Parishes of Whitstable-cum-Seasalter and Swalecliffe in the Rural District of Blean and the provisions of the Local Act as altered by the Order shall (with any necessary modifications) apply and have effect accordingly.

Repeal.

2. Section 146 of the Local Act and so much of Sections 148 and 149 of the Local Act as relates to the water undertaking shall be repealed.

Accounts
revenue and
expenses
of water
undertaking.

3.—(1) All money received by the Council on account of the revenue of the water undertaking (including the interest on any reserve fund authorised by this Order in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the district fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

(2) The Council shall keep their accounts in respect of the water undertaking separate from all their other accounts and in such a form as to show under a separate heading or division on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as to show the amounts expended or set aside in respect of each of the following purposes (that is to say) :—

(a) The payment of the working and establishment expenses and cost of maintenance of the undertaking including

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Provisional Orders Confirmation (No. 1) Act, 1924.

all costs expenses penalties and damages incurred or payable by the Council consequent upon any proceedings by or against the Council or their officers or servants in relation to the undertaking;

A.D. 1924.

—
Whitstable
Order.

- (b) The payment of the interest on money borrowed by the Council for the purposes of the undertaking;
- (c) The provision of the requisite appropriations instalments or sinking fund payments in respect of money borrowed for the purposes of the undertaking;
- (d) The provision of a reserve fund which the Council are hereby authorised to form and maintain in respect of the undertaking by setting aside such an amount (not exceeding in any one financial year a sum of money equivalent to one half per centum upon the total capital expenditure by the Council upon the undertaking as at the termination of the immediately preceding financial year) as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equivalent to one-tenth of the aggregate capital expenditure for the time being by the Council upon the undertaking.

(3) Any reserve fund formed for the purpose of the undertaking and in existence immediately before the date of the Act of Parliament confirming this Order shall be deemed to have been formed under this Article.

(4) Any reserve fund formed under this Article shall be applicable to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the works comprised in the undertaking or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens :

Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(5) Whenever the money received by the Council on account of the revenue of the undertaking shall exceed the amount expended or set aside in connection with the undertaking in respect of the several purposes mentioned in sub-division (2) of this Article then the charges of the Council for the supply of water in the extended limits of supply to be made and charged

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Provisional Orders Confirmation (No. 1) Act, 1924.

A.D. 1924.

*Whitstable
Order.*

in the next succeeding year shall be reduced in such manner as the Council think fit to an extent equivalent to the amount of such excess. Provided that if owing to an increase in the estimated expenditure or to a reduction of the estimated revenue for that year the amount of such excess or any part thereof will be required in order that the revenue may be not less than the amount expended or set aside such reduction in the charges need be made only to the extent (if any) equivalent to the amount that will not be required for that purpose.

Contribu-
tions
towards
band and
provision
and letting
of chairs.

4. The restriction imposed by Section 76 of the Local Act on the yearly expenditure of the Council in respect of bands of music shall cease to have effect and it shall be lawful for the Council to expend in any year for the purposes of Sections 76 and 78 of that Act sums not exceeding the aggregate of (a) any moneys received by the Council during that year under the provisions of those sections (b) the produce of a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate and (c) any moneys received by the Council during that year on account of the letting or licensing of sites for bathing cabins on the cliffs known as Tankerton Slopes. Provided that if such last mentioned moneys shall exceed three hundred pounds the amount of such excess shall for the purposes of this Article be disregarded.

Short title.

5. This Order may be cited as the Whitstable Order 1924.

Given under the Official Seal of the Minister of Health
this Eighteenth day of February One thousand nine
hundred and twenty-four.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

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